

**BYE-LAWS OF
IRA ASPIRATION FLAT OWNERS MAINTENANCE
MUTUALLY AIDED COOPERATIVE SOCIETY LTD.**



**# Sy.No.293/A & 294/A, Ira Aspiration
Apartments,Kollur(V),Ramachandrapuram(M),
Sangareddy(D),502300**

**BYE -LAWS OF IRA ASPIRATION OWNERS MAINTENANCE MUTUALLY
AIDED COOPERATIVE SOCIETY LIMITED.,
UNDER TMACS ACT-1995**

1 - NAME AND ADDRESS

- A. The Name of the Society shall be the "IRA ASPIRATION OWNERS MAINTENANCE MUTUALLY AIDED COOPERATIVE SOCIETY LIMITED" Sy.No.293/A & 294/A, IRA ASPIRATION Apartments, Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300. It shall be a Mutually Aided Cooperative Society registered under provisions of the Telangana Mutually Aided Cooperative Societies Act,1995.
- B. The office of the society and the Address shall be "IRA ASPIRATION Owners Maintenance Mutually Aided Cooperative Society Limited", Sy.No.293/A & 294/A, IRA ASPIRATION Apartments,Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300

1.1 Area Of Operation and Corporate Status

- A. The geographical area of operation of the society shall confine to the limits of Sy.No.293/A & 294/A, IRA ASPIRATION Apartments, Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300
- B. The Society shall be a corporate body with perpetual succession and common seal and with powers to hold property, to enter into contracts, to sue and to be sued.

2 - DEFINITIONS

Words and expressions appearing in these bye laws shall have the following meaning unless the context otherwise requires.

- A. The Act means:** Mutually Aided Cooperative Societies Act, 1995
- B. Board means:** Board of Directors of the society.
- C. Bye-laws:** mean bye-laws of the Society.
- D. Cooperative Principles means:** the cooperative principles specified in Section 3 of the Act.
- E. Default means:** failure on the part of the member of the society or any other person to repay to the society a loan,maintenance, or any


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other amount due to it within the time fixed for repayment or to keep any other obligation for fulfillment of which a time limit has been Specified in the bye-laws or in the concerned document.

F. Defaulter means: any member or resident committing default.

G. He or His means: singular includes plural and vice-versa, and includes 'She' or Her',

H. Prescribed means: prescribed in the Act or in the bye-laws.

I. Registrar means: Registrar of the Telangana Mutually Aided Cooperative Societies and includes any other person on whom all or any of the powers of the Registrar under the Act are conferred.

J. Society means: IRA ASPIRATION Owners Maintenance Mutually Aided Cooperative Society Limited.

K. Complex means: the residential apartments consisting of 748 flats, in Five(5) blocks (A, B, C,D,E blocks) of high-rise towers and club house separately located at Sy.No.293/A & 294/A, IRA ASPIRATION Apartments, Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300Telangana State, and includes all lands and buildings(both temporary and permanent] in it.

L. Common Areas and Facilities means: areas and amenities including club house complex or any other areas that may be earmarked for common use and facilities which are for the common use of residents, their guests, visitors and their employees, to include all the infrastructure created within the said **IRA ASPIRATION**.

I. the land on which the apartment complex is located.

II. foundation, columns, girders, beams, supporters, main walls,roofs including terraces, halls, corridors, stairs, stairways, storage spaces entrance and exit of the building blocks and apartment complex.

III. Basement, open yards, parking areas, internal access within parking areas, lawns & gardens, driveways, jogging/walking tracks, children's play area.


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- IV. Society's office, premise for lodging of caretaker / persons employed for maintenance of the complex.
- V. Lifts, overhead tanks, bore-wells, mineral water plant, pumps, motors, diesel generators, electric transformers, electric switching systems, intercom control room, Sewage Treatment Plant (STP), Organic Waste Converter (owe), Gas Banks and in general, all apparatus & installations, existing / future, for common use.
- VI. Swimming pool, club house including community hall, gym, indoor activity area, cafeteria, and health club.
- VII. Any commercial facilities in existence or that may be added in future
- VIII. All other parts of the property necessary or convenient to its existence, maintenance, and safety or normally in common use.

m. Cooperative year / financial year means: the period commencing on the first(1st) day of April of every year and ending with 31st March of the succeeding year,

n. Declaration means: the declaration which the sole owner of the apartment or all the owners of the complex have executed and registered.

o. General body means: all the members of the Society or the members of the the representative General Body if constituted.

P. General Body Meeting: means the meeting of the members of the General Body or the members of representative General Body of the society of the society when constituted which includes the ordinary and special general body meeting.

Q. Officer: includes a person appointed by the society to any office of the society according to the bye laws and includes a Manager, Member of the the Committee, Liquidator or official assignee or any other person elected or appointed under the Act, the Rules or the bye-laws to give directions in regard to the business done by each of them with the society.

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R. Owner(s) or Apartment Owner(s): is/are person(s) who owns one or more apartments, either singly or jointly, in this complex as per registered sale deed.

S. Tribunal means: the Tribunal constituted under section 32 of the Act and having Jurisdiction.

T. Competent authority: for the purpose of these bye-laws shall be the Board of Directors or General Body as the case may be.

U. Elder's Council: the elder's council consists of Three (3) members (one from each block), appointed by the General Body from among its members or others, whose term of office is one (1) year and eligible for re-nomination for a maximum period of 3 years. The members of the council should not be below 55 years of age.

V. Sub-Committee means: any committee constituted by Board of Directors or General Body for achieving the objectives of the society.

W. Family means: and includes parents, spouse, siblings, parents-in-laws & children.

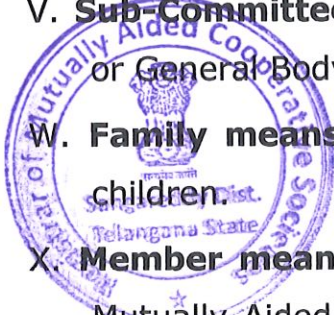
X. Member means: the flat owner of the Ira Aspiration Owners Maintenance Mutually Aided Cooperative Society Limited, who paid the admission fee & Share Capital to the society.

Y. Nominal Member means: a person who is a tenant / occupant / caretaker of a flat other than an owner in IRA ASPIRATIONS APARTMENTS

Z. Regulations means: the operational manuals, instructions, rules and regulations for all the respective areas as defined / published by the board from time to time.

z. Maintenance Charges shall include the following:

- (i) Monthly charge as decided by the Board of Directors from time to time to meet the expenses towards the proper upkeep and maintenance of the complex and its' common areas and facilities, which may include expenses such as Water, Electricity, Security, House Keeping Staff, Landscaping, repairs of various machine & er. incidental & common expenditure.


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- (ii) The term maintenance charges any also include contribution towards the General Operating Fund, Reserve Fund, Sinking Fund and Corpus Fun if any for periodic repair, renovation, replacement, additions etc. The maintenance may also include an insurance premium for a policy to cover the cost of repair of damages caused by hurricane fire, earthquake or other hazards or calamities.
- (iii) Collection / Recovery of costs towards Capital Expenditure (CAPEX) for the infrastructure and other amenities of the society.
- aa. Residents mean Member, Nominal Member, their families except house help & other employees.

3 - OBJECTIVES, POWERS AND FUNCTIONS

3.1 Objective of the Society

The Society is formed and registered primarily to constitute an organization of persons who are the owners of Residential Flats in the Apartment known as "**Sy.No.293/A & 294/A, IRA ASPIRATION Apartments, Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300**". The aims and objectives of the society shall be.

For the welfare of the owners and residents of IRA ASPIRATION consist of all blocks viz., A to E Blocks Situated in **Sy.No.293/A & 294/A, Ira Aspiration Apartments, Kollur(V), Ramachandrapuram(M), Sangareddy(D), 502300**

- A. To take possession of all common areas and facilities in the premises of the "IRA ASPIRATION", like the compound wall, open land and open space on the terrace, driveways, common parking area, children recreation, club house, common corridors, staircases, terrace,generators, submersible pumps, transformers, circuit breakers,electricity meter rooms, lifts, lift room, cooperative society maintenance office, open shafts, common toilets, water pumps, storage tanks, water piping system, drainage system, electricity distribution system, cable television wiring system, telephone wiring system, if any from the promoter /builder.
- B. To manage and maintain all common areas & facilities, amenities, and equipment including the club house.


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- C. To look after the maintenance, cleanliness and lighting of the common areas and club house and regular maintenance and up keep of the equipment.
- D. To take care of the appearance of the apartment including white washing, paintings etc., of the exterior of the apartments and the interiors of the common areas.
- E. To endeavour to do all that is feasible for the safety, security and comfort of the members and nominal members.
- F. To do routine, minor and major maintenance works of all common areas, amenities, facilities and equipment including plumbing dealing with potable water, sewage, rainwater, bore wells, landscaping, internal Driveways, podium etc.; However, the Society will not be responsible for the repairs and maintenance of any facilities inside the flats / Apartments except the assistance provided for the routine and minor fixing of taps, and troubleshooting of electrical issues.
- G. To collect maintenance charges and such other charges as may be required to collect from the members of the Society on a monthly basis and/or to raise funds from Members and/or Nominal Members for a achieving the aims and objectives of the Society.
- H. To promote peaceful and harmonious living conditions, environment, and atmosphere for the ultimate benefit of all the Members of the Society.
- I. To promote, encourage and carry out sports, social, cultural and recreating activities for the benefit of all the Members of the society.
- J. To Carry out such other objectives, as the Members in the General Body may decide from time to time.
- K. To do all things that is necessary and convenient for the accomplishment and fulfilling of the aforesaid objectives of the Society.
- L. To retain and rent or license, if possible, a suitable identified portion of the common areas to outsiders for commercial purpose for the exclusive usage of residents only.



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- N. To provide for and do all and any of the matters provided in the Act.
- O. To establish and conduct with individual or institutions, all types of educational, physical, social, and recreational activities for the benefit of the residents.
- P. To do all things necessary and or otherwise for enhancing cooperation amongst the residents for improving and enhancing the experience of staying at "IRA ASPIRATION" and provide for the expedient attainment of the objects specified in these bye-laws.
- Q. To improve, alter/repair, reconstruct and incur capital expenditure for special repairs to the common areas of any part of the premises in accordance with the law and decisions taken by majority of the members of the society.
- R. To be of assistance to members in whatever manner possible to solve the common problem and promote a feeling of oneness.
- S. To do all things necessary or expedient for the accomplishment of the aforesaid objectives of the cooperative society.
- T. The society shall not act beyond the scope of its objectives.

3.2 Cooperative Principles

Cooperative Principles are the six principles as mentioned under section 3 of the TMACS Act, 1995

3.3 Cooperative Values

Cooperatives are based on the values of self-help, self-responsibility, democracy, equality, equity, integrity and solidarity in the tradition of the founders; members of cooperative societies believe in the ethical values of honesty, openness, social responsibility and caring for others.

3.4 Powers and Functions of the Society

- a. To liaise with the builders, GHMC, any state and central government authority/ departments/ ministries etc., or any public/ private body or

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organization for and on behalf of the Society and its members as and when necessary,

- b. To frame regulations and do all things necessary for the welfare, safety, and security of the residents and for attainment of the objectives enshrined in these bye-laws.
- C. To make available to all concerned, copies of the bye-laws and the Regulations made there under.
- D. To ensure that all residents follow the provisions of the bye-laws and the Rules and Regulations made there under, at all times, thus ensuring a peaceful and amicable living for all.
- E. To take all necessary steps / actions to address / redress, impartially, all grievances of the residents that may arise from time to time.
- F. To take all necessary steps, including legal, to ensure that no commercial or illegal use is made of any of the apartments by anyone and the apartments are used exclusively for residential purposes.
- G. To take appropriate action (legal or otherwise) against any person who violates these Bye laws and Rules and Regulations made, under the Telangana Apartments (Promotion of Construction and Ownership) Act 1987 .
- H. To conduct periodic social get together and functions for all members and residents and their families.
- I. To conduct regular periodical meeting of the Board of Directors and other committees appointed by it maintain written minutes of the proceedings of the same.
- J. To conduct regular periodical Annual General Body Meetings (AGM), at the prescribed date and time latest by September 30th of the following financial year and maintain written minutes of these meetings.
- K. To conduct Special General Body Meetings (SGBM), as and when necessary and maintain written minutes of these meetings.
- L. To appoint an external Auditor who shall be a Chartered Accountant, each year, on an annual basis, which is to be approved at each AGM.



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- M. The Society shall, on or before 30th of June each year, publish an Audited Financial Statement pertaining to the previous financial year. This financial statement will be in the form of a balance sheet duly certified by the Auditor appointed by the GB and which shall be approved by the AGM.
- N. The Society shall not act beyond the scope of these Bye laws without first amending these suitably in the General Body.

4 - MEMBERSHIP

All persons who have purchased a Flat in "IRA ASPIRATION" shall become the members of the cooperative society and shall pay a sum of Rs.100/- as Admission/Entrance Fee (non-refundable) and shall purchase One (1) share of Rs.1,000 /- each face value. Each flat owner shall receive a copy of the bye-laws on payment of Rs.100/-. In case of any disputes in giving membership, the board is the final authority to accept or reject the membership.

Upon any apartment owner selling his/her apartment or absolutely conveying the same by way of gift under his will or otherwise, the purchaser or recipient shall be admitted as member on payment of the entrance fee as applicable, and subject to the purchaser or recipient producing the seller's share certificate in original.

4.1 Joint Apartment Owners

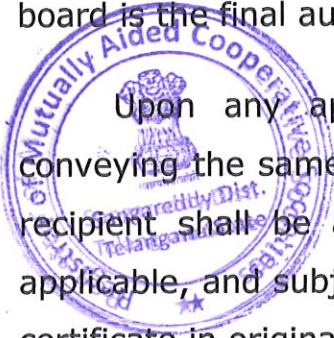
Where a Flat is owned by two or more persons jointly, any one person shall become a member of the society and No objection certificate (NOC) shall be furnished by all the joint owners for proposing the name of any other owners for becoming a member in the society.

4.2-Holding of One Share is Compulsory

Every apartment owner shall hold one share of society.

4.3-Register of Members

Every member shall write or get written his/her name in the Register of Members along with the description and his / her address and shall sign a declaration that he / she will be bound by the bye-laws of the society that may legally be effective during the period of his /her membership. Thereupon he/she


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acquires all the rights and obligations and responsibilities of a member, subject to other provisions of the Act, the Rules, and the bye-laws.

4.4-Transfer of Membership

In case of change of ownership by virtue of conveyance or death of any member, transfer of membership to the new owner, shall be done upon production of proof of ownership/to the Society, such transfer shall be made only upon production of No Due Certificate from society. A non-refundable amount of Rs 1000/- shall be collected in case of transfer of ownership.

On death of an apartment owner, his/her share amount as well as membership shall ipso-facto cease and shall be transferred to the person to whom he bequeaths the same by will or to the legal representative-of his estate in case he/she has made any specific bequest of the apartment. The name of the legatee or the names of the legal representative jointly shall be entered in the register of apartment owners maintained by the secretary for the purpose of administration of the society.

In case the member or the transferee as the case may be, is a minor he shall be represented by his natural guardian, or any other person appointed by a competent court.

4.5- Nomination

Every member of the society may nominate any member of his/ her family as to succeed him /her in the event of his / her death, to his/ her share or interest in the society till submitting joint consent letter to give membership or getting a succession certificate. If a member dies, his /her membership shall ipso facto cease. The family members shall obtain-succession/ Legal Heir Certificate from the competent court.

4.6- Liability of a Member

The society will have all the rights to recover its dues from existing members or past members and successors, assignees, legal heirs of deceased members.


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5- Share Capital

The authorized capital of the society shall consist of 748 shares of Rs.1000/- each aggregating to Rs.7,48,000.00 (Rupees Seven Lakh Forty Eight Thousand Only) .

5.1-Share Certificate

The society shall issue a share certificate duly signed by the President and the Secretary of the society to members after he/ she pays the full value of such share of the society.

5.2-Issue of a Duplicate Certificate

If the share certificate is lost or destroyed, a duplicate certificate may be issued after giving such publicity facts as may be considered necessary by the Board of Directors. In case an objection is raised it will be examined by the Board of Directors, whose decisions in this regards will be final. If certificate is worn out or damaged, the Board may order the same to be CANCELLED ISSUE A DUPLICATE CERTIFICATE IN LIEU damaged certificate. A fee of Rs.500/- (Rupees five hundred only) shall be collected for every duplicate certificate issued under the bye-laws.

6- Expulsion of a Member

If the member acts adversely against the society or his general conduct necessitates his expulsion from the society, the same may be done by the general body by a resolution at its GBM by the vote of not less than 2 /3 of the members present, by giving him/her an opportunity to make his/her representation, if any. The Quorum is mandatory for expulsion of member.

7-Cessation of Membership

- a. Being adjudicated bankruptcy on entering a scheme or arrangement under Bankruptcy Act or being declared as of unsound mind.
- b. On his/her ceasing to hold a flat in the said complex.
- c. Upon being expelled by the members at the General Body Meeting in accordance with the rules.
- d. Upon the member being found guilty of moral turpitude by a competent Court of law.
- e. Upon appointment of the nominee as a member

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- f. In case of any question, difficulty or doubt that may arise in regard to expulsion /disqualification of membership, the decision of the board shall be final and binding.
- g. A member shall cease to be a member when he/she ceases to be an owner. He should, however, pay all the outstanding amount due to the Society. In case of non-payment of dues, the liability shall automatically be transferred to the new owner.

8- Voting, Contesting and Right to Vote

1. Only the member is eligible to vote in the elections and also contest the elections to the Board of Directors. Voting shall be on **"One Apartment one vote basis"**. Only one vote for a member will be allowed even if owns more than one flat.

Votes shall be cast in person and Voting by proxy is not allowed. And not allowed e-voting, Online voting

2. No member shall be entitled to vote for the election of members of the Board or be entitled to stand for election to such board of directors, if he/she is in arrears of any sums due to be paid to the society in respect of his/her contribution for common expenses/maintenance charges for more than ninety (90) days.

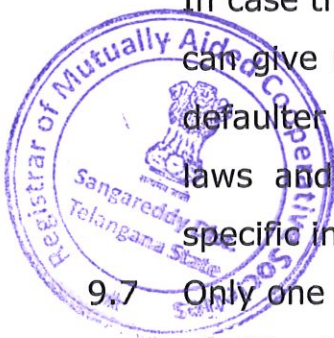


9 - RIGHTS OF THE MEMBERS

- 9.1 To attend and take part in the General Body meeting of the Society subject to satisfying the qualifying clause(s), if any, given anywhere in these bye-laws.
- 9.2 To move resolution in the General Body meetings of the Society subject to satisfying the qualifying clause(s), if any, given anywhere in these bye-laws.
- 9.3 To avail the services and benefits of the amenities provided by the Society subject to satisfying the qualifying clause(s), if any, given anywhere in the bye-laws.

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- 9.4 To inspect the records of the Society by giving prior notice of at least 10 normal working days in writing to the President of Board of Management of the Society, called the Board of Directors. The records are to be inspected only during normal working hours of the Society and only at the place where they are normally kept for day to day working. Under no circumstances are the records to be taken to any other place without the explicit permission of the Secretary of the Board of Management of the society, who will normally be the custodian of all the records, and who will record this fact in writing.
- 9.5 Each member has the right to cast only one vote per apartment owned by him.
- 9.6 The members/ owner whose name in the share certificate can contest the election for Board of Directors and also participate in the voting process. In case the flat stands in the name of more than one person, the person/s can give no objection to become member shall contest, if he/she is not a defaulter in any kind of payment to the society as specified in the bye laws and has not been expelled from the membership by the GB as specific in the bye laws.
- 9.7 Only one member per family can contest the election for the 'Board of Directors', even though the family members have two or more flats in the apartment. "Family" in this case would mean and include parents, spouse, parents-in-laws & children.
- 9.8 Every Member shall be entitled to receive copy of the statement of account and such other documents relating to the management and affairs of the Society as may be required upon payment of copying charges at the rate fixed by the board of directors.
- 9.9 No member shall be entitled to vote for election of the Board of directors, nor shall be entitled to contest for election to such office, if he/she is in arrears of any common expenses/subscriptions amount overdue for more than 90 days.


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10- RESPONSIBILITIES / OBLIGATIONS OF MEMBERS/ RESIDENTS

Each apartment owner is required to comply with the bye laws, regulations and covenants as framed by the society from time to time and applicable laws under the relevant act.

1. The code of conduct for residents are designed keeping in mind the common interest of owners /residents with the following objectives:
 - a) to ensure a safe and secured living environment for the residents,
 - b) to ensure COMFORTABLE and peaceful living for the residents by ensuring that the amenities and common facilities are in good shape and available to all,
 - c) to facilitate residents enjoying the benefits of COMMUNITY LIVING.
2. In addition to the above code of conduct, the society may issue additional guidelines in line with the above-objectives. It is the responsibility of the owners to ensure that these are communicated to the residents in their apartment and are complied with.
3. Every Member shall abide by the bye-laws of the Society and follow all instructions of the General Body; as conveyed through the Board of Directors.
4. Every Member shall pay a monthly "maintenance amount in advance before the 7th of respective month as fixed by the Board. Members may voluntarily pay the maintenance charges in advance on Quarterly/Half yearly or Annual basis, if they desire so.
5. Maintenance charges shall be collected on a "Fixed Rate per Square Feet" basis from all the apartment Flat owners/residents based on the super built up area mentioned in the sale deed.
6. If the apartment owner /resident does not pay the monthly maintenance charges as demanded by the Society within the time frame fixed, a penalty amount of Rs. 50/- per day (or as may be decided by the Board of Directors, from time to time) shall be payable apartment


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owner/resident.If the default is beyond 90 day , the society may withdraw the services rendered to the flats / members.

7. All residents/owners will pay their monthly maintenance charges Irrespective of the fact whether the flat is occupied or vacant.
8. Every owner / tenant at the time of moving in shall pay a sum of Rs.4000/- + applicable taxes and a sum of Rs.4000/- + applicable taxes at the time of moving out. The above-mentioned charges may be reviewed & accordingly amended from time to time by the board of directors.
9. Every resident / owner shall promptly perform all maintenance and repair work within his own apartment, which if omitted would affect the building in entirety, or in part, belonging to other owners being expressly responsible for the damages and liabilities that his failure to do so may endanger. In doing so, he shall not make any alteration, or modification which may affect the facade or the main structure of the building or the common walls / areas or floors between two units.
10. Every resident / owner shall bear the cost of all repairs to the internal installation of his Apartment, such as water, light, gas, power, sewage, telephone, air conditioners, sanitary installations, doors, windows, lamps and all other accessories belonging to the apartment.
11. Every owner/Resident shall fully and without delay, reimburse the society for any expenditure in repairing or replacing any damage to the building including the common areas and facilities caused through his/her/their fault.
12. Every owner/resident shall permit the members of the Board of Directors, or any person authorized by them, to enter the Flat for the purpose of performing installations, alterations, or repairs to the mechanical or electrical services, provided that the requests for entry are made in advance, and that such entry is at a time convenient to the owner /resident. In case of an emergency such right of entry shall be immediate and without notice.



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13. Every Owner/Resident shall ensure that the Apartment is not used for any purpose other than residential. No Owner/Resident shall use any part of the premises for any commercial or office purpose whatsoever.
14. Every Owner / Resident shall ensure that the Building and the Common Areas are kept clean and tidy in all respects, and that garbage or trash thrown only in the disposal installations provided for such Purposes,
15. Every Owner/Resident other shall ensure that the rights and privileges of owners/residents are respected and that no inconvenience is caused to them in any manner,
16. Subletting or sharing an apartment, whether for monetary benefit or otherwise is not permitted.
17. Every Owner /Resident/tenant shall ensure that the staff employed by him bear a good character and shall be responsible for their behaviour and actions while in his service.
18. Every Owner/Resident shall use the lifts in such a manner as not to damage them in any way. Other than hand baggage and light luggage, no package, box, crate or any other article shall be permitted in the passenger lift. No single item weighing 50 Kgs and above shall be allowed in the passenger lift. Such items must be carried in the Service Lift.
19. Every Owner/tenant shall furnish relevant particulars of any person/ persons other than the owners/tenants themselves in occupation of his Apartment as may be required by the Board of directors . A letter of authorization for such occupation shall be given to the Board of Directors before the occupation.
20. Every owner should inform the Society in advance about the change in occupancy of their Flat. For every such change that involves movement of household goods in or out of apartment, a shifting fee and / or a security deposit as prescribed by the Board of Directors will be levied to cover the repairs for minor damages in common area, additional security and housekeeping efforts put in by the Society. The Owner/Resident should take adequate care that no damage is done to lifts or any other



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common area due to this movement. The cost of repairing any major damages, at the discretion of the Board of Directors, will be charged to the Owners account.

21. No Owner shall sell, or otherwise transfer his Flat to anyone without prior notice to the Society and / or without paying in full, all amounts due to the Society and obtaining a 'No Dues Certificate' from the Society. Any default in this regard will result in the transferee being denied any or all of the services rendered by the Society including the supply of services that require upkeep and maintenance on a regular basis.
22. No apartment owner shall add any material structure or excavate any additional basement or cellar or do any other work which would be prejudicial to the soundness or safety of the property or would reduce the value thereof.
23. No Owner/Resident shall place or cause to be placed in the lobbies, corridors, driveways, vestibules, stairways, elevators, terrace / rooftops, basements, two-wheeler parking space / visitors parking in the parking area and in any other common areas/vacant space in the basement/stilt/cellar any furniture, packages, cycles, boxes etc.
24. No owner, resident, visitors, delivery person, workers, employees shall smoke, consume alcohol, tobacco, pan, pan masala, contraband, narcotic substances or conduct any anti-social behaviour or play loud music in common areas of the complex.
25. No Owner/ Resident shall use any portion of the common area including the vacant space in the cellar/parking area including own allotted parking space /park/lawn etc for any private functions, keeping boxes / goods etc and playing any kind of games etc.
26. Installation of metal grills/doors/gates in the common area/ balconies / any facade of the building is strictly not permitted.
28. No Owner, Resident shall park his car and two-wheeler, except at the place allotted to him by the builder/ Society. Visitor's vehicles shall be parked only in the designated visitors parking area.



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29. Cycles/two wheeler of servants, maids, helpers-and other workers/ service providers/visitors will be parked only in the specifically designated and marked areas. Residents and their guests/visitors will not park their cars in these areas.
30. No Owner/Resident shall install any machinery, or equipment, like generators, solar panel etc., in the common areas, especially in the lobbies or corridors or under staircase or on the terrace.
31. No Owner/Resident shall put up any hoarding, advertisement, notice, any kind, in or on the building including near the notice board, or poster of permitted by the board on a fixed charge for a fixed except as authorize duration only.
32. No Owner /Resident shall hang garments, bed sheets, rugs, etc. from railings, parapets, terrace or from any of the facades as this is strictly prohibited.
33. No Owner/Resident shall install wiring for electrical, telephone, or fax machines, television antennae, air-conditioning units, or machines on the exterior of the building including in corridors, rooftops, which protrudes through, or above the walls, except as authorized / permitted by the Board of Directors.
34. No Owner /Resident shall engage any staff of the Society for any personal work without the sanction of the Board of Directors. Security and maintenance staff is not responsible and cannot be tasked for arranging maids,servants,washer men, workers etc for the residents/ owners. However, they can be requested for assistance in the matter, but they will not go out of the complex in search of them,
35. No Owner/Resident, or any person connected with him, shall cause any damage, whatsoever, to any asset of the Society. In the event of doing so, the full cost of repairing such damage / replacing shall be borne by the Owner/ Resident.


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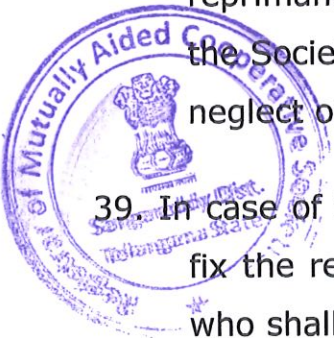
36. Under no circumstance Terrace/rooftops, staircase, lobbies, corridors, parking area will be given to any one or utilized for holding any unctions/events. The clubhouse can be utilized for holding gatherings/functions etc on chargeable basis. No alcohol consumption is permitted in the Clubhouse or any of the common area. Users/owners are expected to leave the club house/rooms neat and tidy damage caused to the club house will be recoverable from the user regulations as defined in the Club House & Events Manual by the board need to be adhered to at all times.

37. No Owner/Resident shall object to any work being undertaken by the Board of Directors, which is in the common interest of the owners, even if such work may cause some inconvenience to him

38. No Owner/Resident shall, under any circumstances, threaten, abuse reprimand, assault or in any way misbehave with the staff employed by the Society/ Board of Directors, but may report any misbehavior, or neglect of duty by them to the Board of Directors.

39. In case of inter-apartment seepage/ leakages, the Board of Directors shall fix the responsibility in consultation with the concerned apartment owner who shall be responsible to repair the same and the decision of the of Directors shall a be final and binding on the owners concerned.

40. Non-payment of dues to the society for three months or over shall constitute just and use sufficient reasons, for the Board of Directors to deny the or all, of the facilities and services, offered to its Members/Residents, PROVIDED that due notice in writing, which shall not be less than seven days, is given to the Defaulting Member. The Notice shall be affixed to the main door of his /her/their Apartment, and also put up on the Notice Board of the Society for the information of its Members. On expiry of seven days from the date the Notice is posted on the door of the defaulting Member's Flat, the Society shall be entitled to initiate action


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for withdrawing its services including stoppage of water and electricity to the defaulting member.

41. In the event of default in payment of dues to the Society for three months, or more, the Society shall have the right to deduct such dues, from any deposits made by the Defaulting Member and held by the Society along with the penal interest that may be fixed by the Society. And the Society may initiate appropriate legal action to recover the dues against such defaulting members in accordance with law.

42. The Board of Directors is empowered to impose a fine for each act of a Omission or non-compliance of laws that result in conflict, cause disturbance to peace, throwing garbage in common areas, wrong parking, nuisance by pets, causing damage to Society's property/ common areas wrong parking and so on.

43. The society committee has the option of imposing legal punishment on those who have misbehaved with others, insulted them, spoken disrespectfully to women and made unsubstantiated allegations.

44. All Owners /Residents must abide by all the rules, regulations, policies & procedures which may be decided by the board of Directors from time to time.

11 - MEETINGS OF THE COOPERATIVE SOCIETY

11.1 Place of General Body Meetings

Meetings of the society shall be held at any suitable place/ venue fixed by the Board of Directors.

11.2 Quorum for the General Body Meeting

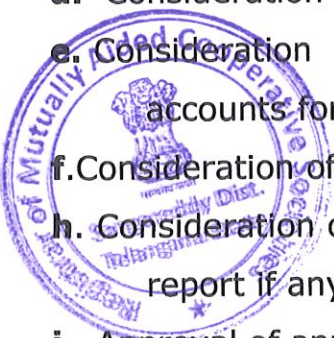
No general meeting shall be held or proceeded with, unless there is a quorum of 1/10th members out of the number of registered members. as on the date the notice has been issue in the absence of a quorum, the meeting shall be adjourned. The adjourned meeting shall be conducted within 14 days if the original meeting date. If the adjourned General Body meeting also, there is no quorum for holing the meeting, members present shall constitute the quorum and the meeting may be proceeded with.

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If in any General meeting of the society called by the Registrar himself, there is no quorum, the meeting shall stand adjourned to such other date and time as the Registrar may determine. If at the adjourned general body meeting called by the Registrar also there is no quorum for holding the meeting, members present shall constitute the quorum and the meeting may be proceeded with

11.3 Powers of the the General Body

The General body of the society shall consist of all the members of the society. The general body shall exercise all powers, as specified in the Act, are given below:

- 
- a. Election and removal of Directors and expulsion of members.
 - b. Amendment of bye-laws.
 - c. Consideration of the long-term preparation of plan and budget.
 - d. Consideration of Annual operational plan and budget.
 - e. Consideration of the auditors report and annual audited statement of accounts for being filed with the registrar.
 - f. Consideration of a special audit report or enquiry report if any.
 - h. Consideration of compliance report relating to audit special audit and enquiry report if any.
 - i. Approval of appointment and removal of auditors
 - j. Disposal of surplus.
 - k. Management of deficit.
 - l. Creation of specific resources and other funds.
 - m. Review of the attendance of the board.
 - n Appointment, re-constitution and disbanding of the representative general body.
 - O. Review of actual utilization of resources and other funds,
 - p. Remuneration payable to intergal audit
 - q- Membership .of the cooperative society in the Federation if a federation is formed in future.
 - r. Collaboration with other organizations and review.
 - s. Promotion of subsidiary organizations and review.

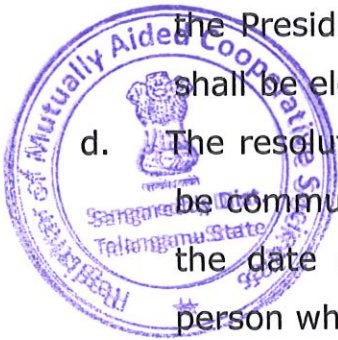
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t. Dissolution of the cooperative society.

u. All other matters as are necessary and incidental to be taken up by the general body.

11.4 General Body Meetings

- a. The Annual General meeting shall be convened by the board at least once in a financial year
- b. It shall be the responsibility of the board of directors to convene the requisitioned general meetings within (30) days of the requisition. If the board fails to convene such a meeting within the time specified, it shall be competent for the Registrar to convene the requisitioned General Body Meeting/ Annual General Body meeting as the case may be.
- c. The President of the society shall preside over such meetings. The Vice President can preside over the General Body Meeting in case of absence of the President. If both are absent, a member from the Board of Directors shall be elected to preside in such meeting only.
- d. The resolutions of the General body Meetings shall be recorded and shall be communicate to all persons invited or the meeting within 15 days from the date of meeting. The minutes so recorded shall be signed by the person who chaired the said meeting.



11.5 Special General Body Meeting

It shall be the duty of the President to call a special General Body meeting of the apartment owners / residents as directed "by" 'a resolution of the board, or upon a petition signed by 50 members and having been presented to the Secretary, or at the request of the Registrar, or as the case may be, the Registrar of the Cooperative Society or any officer duly authorized by him/her on his /her behalf, The President is bound to call the Special General Body meeting within 30 days of the receipt of such notice / requisition as per section 24 of Telangana Mutually Aided Co-operative societies Act, 1995. The notice of any special meeting shall state the time and place of such meeting and the purpose thereof. No other business shall be transacted at a special meeting except as stated in the notice.

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11.6 Notice of Meetings

The notice along with agenda for any general body or special meeting shall be signed by the Secretary and shall be sent at least (15) days prior to the date of meeting.

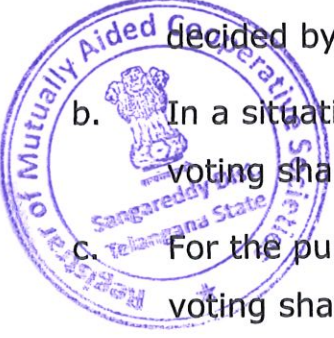
The notice may be sent by electronic mode of communication or affixing in the notice board of the society or by any other mode as decided by the General Body from time to time.

The sending of a notice in the manner provided in this bye-law shall be considered notice served.

11.7 Adjourned Meetings

For the meeting called in pursuance of the Special General Body Meeting (SGBM) / requisition (as mentioned in 11.6 above), if there is no quorum, the requisition shall lapse.

11.8 Method of Voting at GBMs.

- 
- a. All matters that may be brought before the General Body Meeting shall be decided by majority of votes taken by show of hands.
 - b. In a situation where a poll is demanded by members in majority, the voting shall be taken in such manner as the Chairman may direct.
 - c. For the purpose of elections to the board of directors, the method of voting shall be by secret ballot.
 - d. Election of board of directors is not , -necessary in case of unanimous declaration of elections.

11.9 Order of Business

The order of business at all General Body Meeting of the owners/ members shall be as follows:

- a. Roll call
- b. Proof of notice of meeting or waiver of notice.
- C. Reading of Minutes of the previous meeting.
- D. Reports of officers.
- E. Adoption of audited financial statements Resolutions to be passed of auditors
- g. Appointment / re-appointm
- h. Reports of the Competent Authority or the Registrar of Cooperative societies or of the officer duly authorized by them, if present.
- i. Report of committees.

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j. Election of Board.

11.10 Election of Directors

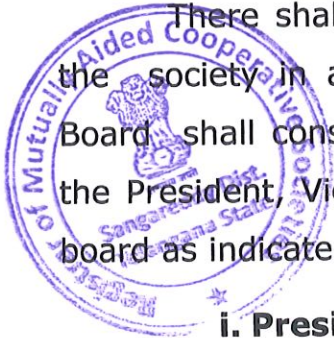
At the first election, all the directors are elected at once and their terms are staggered by draw of lots specifying different terms, not exceeding 3 years.

All the members of the General Body having right to vote shall elect directors by secret ballot. It shall be the responsibility of the incumbent board to conduct elections before expiry of their term. The board shall appoint an Election Officer to conduct the elections of directors. The Election Officer should not be a member or employee of the society. The Election Officer shall conduct the elections as per election rules fixed in the bye laws.

If any director resigns, the board shall fill up the vacancy by co-option, for the remaining term of the director because of whom the vacancy arose

11.11 Board of Directors

There shall be a Board of Directors entrusted With the Management of the society in accordance with the provision of the Act and bye laws. The Board shall consist of Nine(09) Directors and the elected Directors shall elect the President, Vice President, Secretary, Joint Secretary and Treasurer of the board as indicated below:

- 
- | | |
|---------------------|----|
| i. President | -1 |
| ii. Vice President | -1 |
| iii. Secretary | -1 |
| iv. Joint Secretary | -1 |
| v. Treasurer | -1 |
| vi. Directors | -4 |

TOTAL -09

The number of directors may be altered from time to time by the General Body at a duly convened meeting.

11.12 Term of Directors

The term of the members of the Board, will be staggered by drawl of lots as per Sec 21 of the TMACS Act 1995. Every year Three Board members will retire, the retiring Board members are eligible for Re-Election.

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11.13 Eligibility for nomination as Director

In order to be eligible to be elected as a director of the board:

- a. A person should have been a voting member for at least two years preceding the year of election (barring first election).
- b. Should have attended the two annual general meetings immediately preceding the meeting in which he stands as a candidate for director (barring first election).
- c. Should not have been penalized or convicted under any law.
- d. Should not have lost the right to vote or right to continue as a director (barring first election).
- e. Should not be a defaulter to the society" on the date of notice convening the general body meeting in which election will be held.
- f. A person shall cease to be a director if he incurs any of the disqualifications mentioned against any of the above

g. Further the directors of the board incur disqualification for a period of three (3) years from being directors and shall be ineligible to continue as directors/ contest for elections, if during their term as directors:

h. They did not conduct election to the vacancies falling due to staggered terms before expiry of term.

i. They did not conduct the annual general body meeting within six months of closure of the financial year or a requisitioned general meeting within the specified time, or

J. Only members who have paid all dues towards the society, including corpus fund, amenities charges, maintenance, and any other charges as may be determined by the society, shall be eligible to vote in the elections or to contest for election to the Board of Directors.

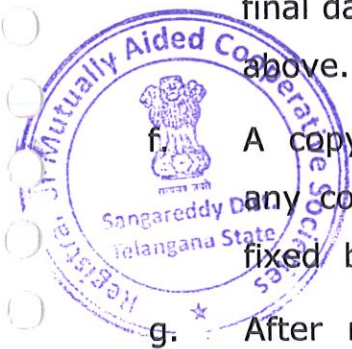
They did not place the audited accounts for the preceding financial year along with the report of the auditor before the annual general body meeting.

11.14 Manner of Conducting Elections

- a. It shall be the responsibility of the incumbent board to conduct the elections at least 45 days before expiry of the term of office of the outgoing directors

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- b. The Board of Directors shall appoint an election officer and communicate the same to the election officer.
- c. The Election Officer shall issue the requisition for production of relevant records and voters list to the society within three days from the date of receipt of his appointment orders.
- d. The President/Secretary of the society shall publish on the notice board, the list of members eligible to vote, within Three (3) days after receipt of communication from the election officer, and invite the claims or objections from the members within (3) days thereafter. The notice shall indicate the Serial number, Name, flat number of the member.
- e. The President/Secretary shall communicate the finalized list of members eligible to vote to the Election Officer within three (3) days thereafter the final day of claims/objections called for if any as specified under clause (d) above.
- f. A copy of the list of members eligible to vote shall be supplied to any contesting candidate on payment of Rs.250/- or any other amount fixed by the society.
- g. After receipt of the final list of members eligible to vote from the society, the Election Officer shall issue Election Notification along with the final list of voters.
- h. Only a member whose name is included in the voters list of the society, can contest for the election.
- i. Every nomination shall be signed one proposer and one seconder who shall be eligible members on the voters list. A member can either be a proposer or seconder for one candidate only.
- j. The contesting candidates cannot be proposer and/or seconder or another contesting member for that election.
- k. Every nomination shall be presented in person by the candidate himself and by his proposer or seconder to the Election Officer or the representative /assistant election officer along with fees prescribed.



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- l. The nomination fee can be used by the election officer for election expenditure and shall be accountable to the society at the end of elections.
- m. The Election Officer shall follow the schedules fixed under the election notification.
- n. The Election Notification/ Election Notice shall mention the date & time of filing nominations, withdrawal of nominations, scrutiny of nominations, final list of contesting candidates, date of polling in case of contesting candidates are more than the required, counting, declaration of winners, election to the board of directors.
- o. The Election Officer may be called to conduct secret ballot, if necessary, for the posts of office bearers like President, Vice-President, Secretary, Joint-Secretary and Treasurer within three (3) days after announcement of election results.

11.15 Meetings of the Board of Directors and Quorum

- a. The Board of Directors shall meet at least once in three months or as often as necessary to conduct the affairs of the society. The quorum for the meetings of the Board of Directors shall be more than half Directors, irrespective of a vacancy in the office of the Board of Directors.
- b. No member of the board of Directors shall be present at a meeting of the Board when any matter in which he is personally interested is being discussed. In case of urgent matters, for want of time to convene the meeting, the Secretary may obtain orders by circulation among all the members of the Board. Such decisions arrived at by circulation shall be placed before the next meeting of the Board of Directors.
- c. All decisions in the meeting of Board. of 'Directors will be taken by the majority / majority vote. In case of a tie the Presiding officer is entitled to an additional vote.
- d. The Secretary shall send notice of' the meeting along with the agenda to the board members with details of date and time. The notice shall be



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sent to the members at least seven (07) days before the meeting. However, the President can call for an impromptu meeting of the Board to discuss priority issues. However, no financial decision will be taken in such meetings, except if there is an emergency, which will be ratified in the next formal meeting.

- e. Recording of Minutes of the Meetings: The minutes of the meetings of the Board of Directors and General Body shall be recorded for the purpose by the Secretary, duly signed by members present at the beginning of minutes in token of attending the meeting. The proceedings/resolutions recorded at the end shall be authenticated by the chairman of the meeting. The minutes of meeting shall be communicated to all the members within (07) days of meeting.

11.16 Powers and Functions of the Board of Directors

- a. The board shall, in accordance with the bye-laws, be the authority to
- i. admit membership.
 - ii. elect the chairperson and other office bearers.
 - iii. appoint and remove any staff member
 - iv. fix staff strength.
 - v. frame policies concerning
- a) organization and provision of services to members.
 - b) recruitment and conditions of service of the staff at the cooperative society.
 - c) appointment of Internal auditors, Advocate, Legal Adviser/s and fix their remuneration.
 - d) mode of custody and investment of funds, however the funds shall be invested only in the form of Fixed Deposits with Nationalized Banks.
 - e) manner of keeping accounts.
 - f) mobilisation, utilisation and investment of various funds.
 - g) monitoring and management information systems including statutory returns to be filed; and
 - h) such other subjects and matters necessary for effective performance of the Cooperative Society.
 - vii. place the annual report, financial statements, annual plan and budget for the approval of the general body
 - viii. Consider audit and compliance reports and place these before the General Body.


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ix. review membership in other cooperative-federations; and
x. undertake such other functions as may be delegated by the general body. Appoint sub-committees for specific requirements as may be decided from time to time.

- b. The chairperson shall be elected by the board from among the elected members and shall, in accordance with the bye-laws,
- i. preside at meetings of the board and the general body.
 - ii. have only a casting vote in the event of equality of votes on any matters being decided upon by the board.
 - li. exercise such other powers as may be delegated by the board and specified in the policies framed or resolutions adopted by the board.
- C. The board shall have full authority to ask for all accounts in respect of funds allocated / collected / Spent by any subcommittee or individual for the society related activities.

11.17 Other Duties and Functions of the Board of Directors.

In addition to the duties imposed by these bye-laws and act or by resolution of the cooperative society, the Board shall be responsible for the following that is to say:

- a. Care, upkeep and surveillance of the Apartment/ common areas and facilities including the restricted areas and facilities.
- b. Collection of monthly assessments from the owners.
- c. Designation, employment, remuneration and dismissal of the personnel necessary for the maintenance and operation of the common area and facilities including restricted areas and facilities.
- d. To provide for the manner in which the audit and account of the cooperative society shall be carried out.
- e. To inspect the accounts kept by the secretary and /or the treasurer and examine the register and account books and to take steps for the recovery of all sums due to the cooperative society.
- f. To sanction working expenses pertaining to repair, upkeep,

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maintenance and development of the 'complex; count cash balance and deal with other miscellaneous business.

- g. To see that the cash book is written up promptly and
- h. To hear and deal with complaints. .

11.18 MANAGER

The board may employ for the cooperative society a manager at a compensation determined by the Board to perform such duties and services as the board shall authorise.

11.19 Removal of Directors

At any regular or special general body meeting duly called, any one or more of the Directors may be removed by following due procedure mentioned in the Telangana Mutually Aided Co-operative Societies Act, 1995. Any director whose removal has been proposed by the owners / members shall be given an opportunity to be heard at the meeting,

12 - DUTIES AND FUNCTIONS OF THE OFFICE BEARERS AND MEMBERS OF THE BOARD

12.1 PRESIDENT

The President shall preside over all meetings of the Society and the Board of Management/ Board of Directors. He/she shall exercise general control and supervision over the affairs of the Society / Board of Directors. In case of an emergency, he/she may on his/her own or through the Secretary, Convene Emergency General Body Meeting as and when he/she deems necessary by following the procedure given in the bye-laws. The President shall ensure that the Board of Directors function as per the bye-laws. He/She shall have an additional 'Casting Vote' in the event of a tie in the voting.

12.2 VICE-PRESIDENT

The Vice-President shall assist the President in the functions of the President. In the case of the President being absent (planned absence only) above (07) normal Working days, the President shall hand Over the duties to the Vice-President who shall carry out all the duties and functions of the President till the President gets back and assumes charge, which shall be automatic, except if decided otherwise by the GB. In the case of

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unforeseen absence of the President and if any matter of urgent nature arises for which an immediate action / decision has to be taken by the President, the Vice-President may take the necessary action / decision and apprise the President on the later return. The Vice-President shall also perform some other specific duties / functions entrusted to him / her by the Board of Directors / GB from time to time.

12.3 SECRETARY

The Secretary shall be responsible to the Board of Directors for all day-to day activities relating to the proper management, maintenance and upkeep of the complex and shall:

- 
- a. be the main administrative / executive officer of the Society. He is the custodian of all records, documents, files and correspondence of the Society.
 - b. undertake all correspondences on behalf of the Society. He is responsible for recording the proceedings, minutes of all meetings of all both General Body and the Board of Directors.
 - c. Keep accurate minutes of the proceedings of all meetings of the Board of Directors, and of the Annual General and Special Meetings.
 - d. be responsible for convening various meetings, ensuring adequate notice period, and calling for and issuing the approved agenda to members.
 - e. give effect to the directions and decisions taken at such meetings.
 - f. Prepare reports of all relevant activities of the Society for the information of the General Body.
 - g. assist the Treasurer in the preparation of financial statements, along with audit reports, which are to be presented at the General Body Meetings.
 - h. be responsible for all aspects concerning the overall security and the maintenance of good order.
 - i. be the coordinating officer between the various office bearers of the Society.
 - j. be the PRO of the Society and shall be representative with outside agencies when the President has nominated no other members for the purpose.
 - k. be responsible for the overall development, proper upkeep and general maintenance of the complex.

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- l. be required to oversee proper working and performance of duties by the staff and other employees of the Society.
- m. be responsible for close and continuous liaison and coordination with concerned departments.
- n. be the officer to sue or to be sued on behalf of the Society and shall have the powers to appoint advocates, sign appropriate legal or written documents and give sworn affidavits with the approval of Board of Directors.
- o. implement decisions of the Board of Directors and General Body.
- p. be authorized to represent the Society before any authority, court, tribunal for the purpose of prosecuting or defending any legal proceedings or other applications.
- q. collect all dues to the Society and ensure through the Treasurer that proper accounts are maintained of all financial transactions relating to the Society.
- r. manage and control the staff and take disciplinary action where necessary.
- s. institute, prosecute and defend suits and other proceedings in which the Society may be involved.
- t. prepare the Annual Report, and financial Statement of Accounts under the guidance of the Board of Directors.
- u. maintain a cash amount of Rs. 50,000/- (Rupees Fifty Thousand only) or as decided by the General Body for incidental expenses.
- v. maintain a Register of Members.
- w. have charge of such books and papers as the Board of Directors may direct
- x. perform, in general, all the duties as authorized by the Board of Directors and incidental to the office of a Society
- y. to monitor the collection of maintenance charges

12.4 JOINT SECRETARY:

Joint Secretary shall assist the Secretary in the functions of the Secretary. In the case of planned prolong absence of the Secretary; the Joint Secretary is to take charge of all functions and duties of the Secretary. This includes the duties of custodian of the properties, both movable and immovable, of the Society. On return of the Secretary, he

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/she is to hand over charge to him/her. The Joint Secretary shall perform other specific duties entrusted by the Board of Directors/General Body from time to time.

12.5 TREASURER

- a. Treasurer is the custodian of the funds and accounts of the Society. He/she shall act as per the advice of the President and/or Secretary and maintain, faithfully, records of all income and expenditure of the Society in the respective books of accounts and ensure that all funds of the Society are duly accounted for at all times.
- b. The Treasurer shall issue receipts for all incomes of the Society. He/She shall maintain the record of inventory of the properties of the Society, both movable and immovable. The Treasurer shall not disburse any funds unless duly passed, in writing, by the Secretary / President / the Board of Directors as specified in these bye-laws. The Treasurer shall operate the bank account(s) along with the Secretary and President. The Treasurer is to make available all books of accounts and inventory to the committee of members appointed by the Board of Directors to carry out internal audit and physical check of the properties of the Society from time to time. The Treasurer will close all books of accounts and inventory at the end of the financial year and submit these and any other records as called for by the external auditor, appointed by the GB for auditing. Treasurer shall liaise with the appointed auditors and take guidance on all financial affairs of the Society.
- c. The treasurer shall be responsible for all tax and other statutory compliance.
- d. The Treasurer shall prepare monthly income and expenses of the previous month and publish within 07 days of next month.

12.7 MEMBERS OF THE BOARD OF DIRECTORS

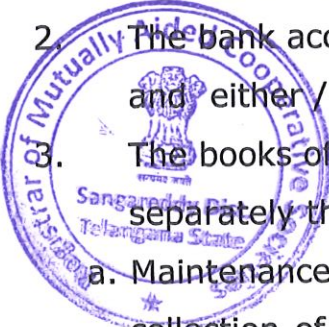
Members of the Board of Directors shall help and guide the office bearers in running the day-to-day affairs of the Society. They will be involved in all


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the discussion and decision-making process in the meetings of the Board of Directors. The Board of Directors shall distribute/delegate the responsibility of routine management of any of the amenities/facilities to specific board members. The Board of Directors may authorize the members to co-opt any Member/Associate Member to assist him/her. However, the Board Member in charge of a particular amenity / facility/shall be solely answerable to the Board of Directors / General Body.

13 - ACCOUNTS

1. A Savings Bank Account shall be opened by the Board of Directors of the Society with any Nationalized Bank, into which, all monies received on behalf of the Society, shall be deposited. Petty cash not exceeding Rs.20,000/- will be kept with the Secretary/Treasurer for day-to-day expenditure. All payments above Rs.5,000/- (Rupees Five Thousand only) shall be made by cheques/NEFT/ RTGS or by any other electronic mode only.
2. The bank account(s) of the Society will be operated by the President and either / or between the Secretary and the Treasurer.
3. The books of account shall be maintained in a manner so as to report separately the following:
 - a. Maintenance Account which shall consist of all the transactions related to collection of maintenance charges and incurring of common maintenance expenses and other outflows pertaining to the apartments.
 - b. Incomes and Expenses of the Society other than the above
 - c. Assets and liabilities of the Society.
4. All expenses shall be reviewed; approved by the board according to the limits set from time to time. The delegation of financial powers for disbursement of expenses by the office bearers shall be as follows:
 - a. Jointly by Treasurer and either President or Secretary to Rs.50,000/-.


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b. The Board shall approve all expenses above Rs.50,000/-up to Rs.1,00,000/-only. If any expenditure more than Rs.1,00,000/- approved by General Body.

i. The pay-outs approved by a and b above shall be placed before the Board every quarter for control purposes.

ii. All other expenses shall be approved by the General Body.

iii. The delegation of powers as stated above may be revised from time to time by the General Body.

5 All transactions shall be carried out and accounted for to the Board by respective member /committee in a transparent and proprietary manner.All supporting invoices /vouchers, wherever available, shall be submitted in original to the society for its records.

6 The society shall, on during the annual General Meeting (AGM) of each year publish audited Annual Financial Statements containing:

I) The Income and Expenditure 'account for the preceding financial year.

II) The Maintenance Account showing the Receipts and payments Account in respect of, for the preceding financial year.

III) The Balance Sheet as on the preceding 31st March.

of the Society giving such additional particulars as may be required under statute or as decided by the Board from time to time or is otherwise important for better understanding of the financial statements.

7. The books of account and audited financial statements shall be open to the inspection of any Member of the Society during the office hours and in the office of the Society, by giving 7 days' advance notice.

8. Every financial statement shall be accompanied by a complete list of the Flat Owners as on March 31st each year.

14 Publication of Accounts and Reports

The financial year of the Society shall be from 1st of April to 31st of March. A copy of the last financial statement and the report of the Auditor, if any, shall be kept in a conspicuous place in the Office of the Society. Display of

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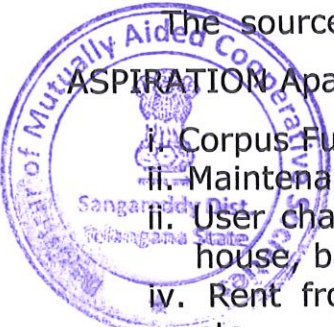
accounts/ balance sheets / income expenditure details will be done on all the notice boards / electronic media every month by the treasurer for information of all residents/owners. A list of defaulters on any type of payment with details will also be put up on the notice boards every month.

15 Appointment of Auditors

1. The Audit of books of account of the Society shall be carried out by a Chartered Accountant duly appointed as its auditor in the Annual General Meeting.
2. All compliance-related payments shall be made on a quarterly or annual basis, and the returns of the Society shall be filed regularly.
3. Annual returns must be submitted regularly to the Registered Office (DCO Office). if not submitted in prescribed time Legal action will be taken as per Act.

16 Source of funds

The source of funds is entirely contributory from the members of IRA ASPIRATION Apartment and consists of the following: -

- 
- i. Corpus Funds.
 - ii. Maintenance charges collected from the members.
 - iii. User charges for the temporary usage of the common areas like club house, banquet halls, common areas, etc.
 - iv. Rent from commercial areas let out for super market, clinic, salon, etc.,
 - v. Admission fee
 - I. Share amounts
 - II. Transfer fee
 - Vi. Interest from deposits.

17 Constitution of Various Funds and their purposes

Society shall form its surpluses in any year and apportion after allocation of interest on share capital in accordance with the provisions of the TS MACS Act, 1995 and as per the decision of the General Body from time to time.

18. Utilization of Funds

- a. The funds so raised by the Society shall be utilized towards achieving the aims and objects set out herein above.


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- b. The funds of the Society shall be spent only towards the accomplishment of the aims and objectives of the Society and no portion thereof shall be paid or transferred directly or indirectly to any of the members through any means.
- c. The funds should not be diverted/utilised for any other purpose like donation, organizing private social / cultural events.
- d. The interest from corpus fund will only be utilised for repair maintenance, upkeep and development of the complex after prior approval in the meetings of the Board of Directors/GB, as the case may be.

19. Investment of Funds including Corpus Fund:

The corpus fund of the Society shall consist of contribution of the members, transfer fee, the registration fee, etc. and shall be kept in fixed deposit in any public sector bank and shall not be utilized for any purpose, other than those approved in a legally constituted GBM. The Society may invest or deposit its funds in any Nationalized Bank or any other scheduled Banks as decided by the Managing Directors from time to time.

20 - NOTICE TO SOCIETY

1. A Flat Owner shall notify in writing to the Society of his intention before he conducts a Sale, Rent/ Lease 'or, agreement in respect of his Apartment and in such case, he shall pay all unpaid assessment of the Society including interest, if any, on such outstanding balance. In case of a default, all such outstanding amounts will automatically devolve upon the buyer or the new lessee.
2. The Society will have first lien over the rent payable or over the sale proceeds in the event of any default by any member in paying the dues. The mortgagor shall pay all dues to the Society before affecting the mortgage failing which the services of the Society shall not be made available to the mortgagee.
- 3 The owner shall inform the society prior to carrying out any modifications or changes inside the apartment in line with section 6.9 above. All

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charges will be applicable as specified in the bye-laws herewith or as decided by the board from time to time.

- 4 The owner shall notify in writing about new/existing adoption of Pets as per the rules mentioned in the bye-laws and GHMC guidelines.
5. The owner shall notify society regarding purchase/parking of electric vehicles that would require charging points. The cost and the safety of the charging points to be owned by the vehicle owner.

21 - RULES ON USE OF COMMON AREA, AMENITIES, TENANTS, PARKING, PETS, LIFTS, ETC

ALL RULES & REGULATIONS WILL HAVE TO BE PROPOSED BY THE BOARD OF DIRECTORS AND SHALL BE APPROVED IN THE GENERAL BODY MEETING.

21.1 Rules On Parking

The detailed policies & rules on Parking within the society, common areas and basements shall be defined' and resolved by the Board of Directors, time, and published in the Society Operational manual or Standard Operating Procedure Document.

21.2 Rules Regarding Use of Common Area, Corridor, and Driveways

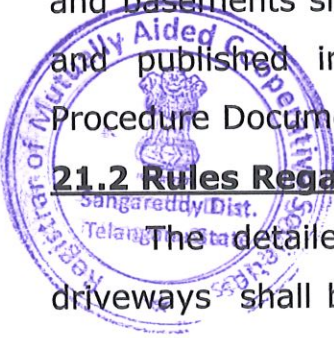
The detailed policies & rules regarding common areas, corridors & driveways shall be defined & resolved by the Board of Directors, time to time, and published in the Society Operational Manual or Standard Operating Procedure Document.

21.3 Rules Regarding Utilization of Club House, Badminton Court, Swimming Pool, Gym, Etc.

The detailed policies & rules regarding Club House, Badminton Court, Swimming Pool, Gym, Etc. shall be defined & resolved by the Board of Directors, time to time, and published in the Society Operational Manual or Standard Operating Procedure Document. .

21.4 Rules Regarding Pets

The detailed policies & rules regarding pets shall be defined & resolved by Board of Directors, time to time within the laws of Animal Welfare (AWBI) & general guidelines prescribed by the State & the District, and published in the Society Operational Manual or Standard Operating Procedure Document.


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21.5 Rules Regarding Tenants

The detailed policies & rules regarding Tenants shall be defined & resolved by the Board of Directors, time to time, and published in the Society Operational Manual or Standard Operating Procedure Document.

22 - RULES REGARDING CASUAL VISITORS / GUESTS

The detailed policies & rules regarding Guests & Visitors shall be defined & resolved by the Board of Directors, time to time, and published in the Society Operational Manual or Standard Operating Procedure Document.

23 -RULES REGARDING ENTRY OF SERVANTS, DRIVERS, MAIDS, WASHERMEN, ETC.

The detailed policies & rules regarding SERVANTS, DRIVERS, MAIDS, WASHERMEN, ETC. shall be defined & resolved by the Board of Directors, time to time, and published in the Society Operational Manual or Standard Operating Procedure Document.

24- MEANS OF COMMUNICATION BETWEEN RESIDENTS/ OWNERS AND THE BOARD, MAINTENANCE AND SECURITY STAFF

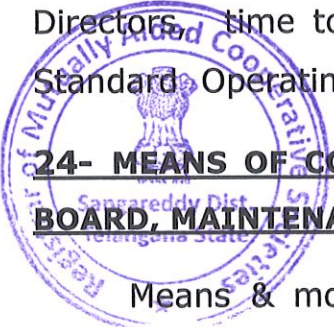
Means & modes of communication with the members / residents shall be defined & resolved by the Board of Directors, and published in the Society Operations Manual or Standard Operating Procedural document, from time to time.

25 - RESOLVING OF COMPLAINTS RELATED TO MAINTENANCE AND SECURITY AND SUGGESTION FROM MEMBERS/ RESIDENTS

The procedure / process for resolving complaints related to maintenance security & suggestion from members / residents shall be defined & resolved by the Board of Directors, and published in the Society Operations Manual or Standard Operating Procedure document, from time to time.

26 - SETTLEMENT OF DISPUTES

If any dispute touching the institution management or business of IRA ASPIRATION arises:


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- a. Among members, past members or a person claiming through members and deceased members or
- b. The Society, its Board, Director, Office bearer, past or present or Between the Society or its Board and any past Board, any Director, Office Bearer or any past Director, past Office Bearer or the nominee, heir/legal representative of any deceased director or deceased Office Bearer of the Society, employee of society.

Such disputes should be referred to an elder's council and its decision shall be binding on the disputing parties.

27 - DISSOLUTION BY MEMBERS

- a. A cooperative society may, by a special resolution, authorise its own dissolution as per provisions of the Mutually Aided Cooperative Societies Act 1985; Provided that a notice of the general meeting shall also be sent with an invitation to attend, to the Registrar, to any federations of which the cooperative society is affiliated, to any organisation with which a partnership contract has been entered into
- b. Invitees under the provision of sub-section(1) of section 39 of the Act shall have the right to make a representation to the general body, if they so wish to, giving reasons why dissolution called for.
- c. Within fifteen days of such authority at for dissolution, the cooperative society shall send to the Registrar a copy of the authorization to dissolve the cooperative society, by registered post.
- d. Where the Registrar receives the special resolution passed in pursuance of sub-section (1), he shall cause at the expense of the cooperative society a notice of the special resolution to be published once a week for two weeks in a newspaper published or distributed in the district where the registered office of the cooperative society is located.
- e. The Registrar may require from the cooperative society, the liquidator appointed by the cooperative society or any other person who is required to furnish information, a periodical return showing
 - i. the progress of dissolution;

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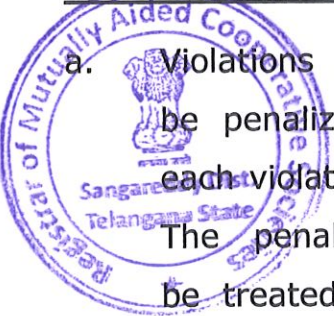
- ii. the distribution of any undistributed surplus or reserve;
- iii. any other relevant information that he may require.

28 - AMENDMENTS TO THE BYE-LAWS

The society may amend its byelaws by a resolution passed by the General Body by a majority of not less than 2/3rd of the members present and voting; Provided that no such resolution shall be passed unless **at least (20) clear days' notice** of the meeting has been given along with the copy of the proposed amendment to each member of the society and displayed on the Notice Board of the society for a period of **(20) days** immediately preceding the date of meeting.

An amendment to the byelaws under Section (9) of the Act shall come into effect only after registration or on the 30th day of the amendment has been sent to the Registrar for taking on record as the case may be.

29 - PENALTIES

- 
- a. Violations to the Rules of conduct as defined in the Regulations, can be penalized by the Board of Directors. The amount of penalty for each violation /additional violations shall be decided by the general body. The penalty amount will be treated as due to Society till paid and will be treated at par with any other dues.
 - b. Board of Directors of the Society may after due notice of not less than 15 days, for just and sufficient cause, cut off, withhold or in any manner curtail or reduce any essential supply or services enjoyed by an apartment owner/resident. The cost of restoration of service shall be payable by the apartment owner/ resident.
 - c. If the outstanding dues become significant (the limit of amount to be set from time to time by the general body of members), the property of the member will be attached, for its sale, for the settlement of dues, and for return to the member of any balance remaining.

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- d. Violation of any part of the bye-laws resulting in expenditure to restore the apartments to original condition by Cooperative society; shall be recoverable from the apartment owner who caused such damage.
- e. If the apartment owner/resident does not pay the monthly maintenance charges as demanded by the apartment Society within the time-frame fixed, the penalty amount of Rs 50/- per day shall be payable by the apartment owner/resident.

While all the rules and regulations cannot be mentioned in the bye laws, residents are requested to act as per their conscience applying common sense and logic to their actions and- conduct guiding principle here is to respect each other's freedom and concern.

Escalation Matrix for penalizing for violation of society Rules as defined by the board in the regulations.

30 - DOUBTS

In case of doubt, rules/details maintained in Telangana Apartments (Promotion of Construction and Ownership) Act 1987 as amended from time to time and Telangana Mutually Aided Cooperative Societies Act 1995 will prevail and will be followed by all the residents, tenants and owners. These bye laws are binding on all the owners and tenants as per section 31 Chapter IV of Telangana Apartments (Promotion of Construction and Ownership) Act 1987.

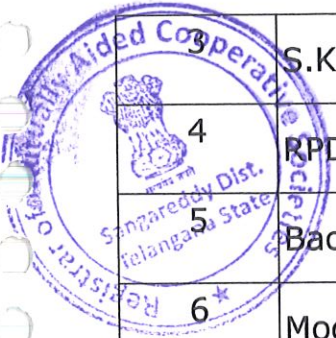
31 - OFFICIAL LANGUAGE

The conduct of the internal affairs. lithe **IRA ASPIRATION**, and maintenance of all records and accounts, will be' in English or Hindi, as resolved by the Board of Directors.

Certified that the proposed byelaw are adopted by us at our meeting held on 10/04/2026.

SNO	Name	Signature
1	Chikoti Shailaja	Ch. Shailaja
2	Kotte Purushotham Reddy	

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3	S.Krishnaswamy	
4	RPD Kumar	
5	Bachupally Naveen Kumar	
6	Modekurty Ramanarayana Vijay	
7	Kothakonda Ramesh	
8	Chalamala Raja Manohar	
9	Naraharisetty Vikas	
10	G.Sudarshan Reddy	
11	Katha Vishnu Vardhan Reddy	

1. Registration No.. TG/SRD/MACS/2026-101/FOW & M
2. Date of Registration: 04-06-2026
3. Area of Operation: Kollur
4. Number of Members: 11

Registrar of Mutually Aided
Co-op. Societies, Sangareddy District

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